

1 Name: _____
Last First Middle

Mailing address: _____
Street

City State Zip

2 The court finds that the petitioner is eligible for the following requested relief and makes the following order:

- ☐ The court **GRANTS** the petition. The record of arrest in the following matter shall be sealed under the provisions of section 851.91, and the arrest deemed not to have occurred:

Law enforcement agency report number: _____

Prosecuting agency report number: _____

Court case number: _____

Other: _____

Petitioner may answer any question relating to the sealed arrest as though it did not happen, and petitioner is released from all penalties and disabilities resulting from the arrest, except as follows:

- The sealed arrest may be pleaded and proved in any later prosecution of the petitioner for any other offense, and will have the same effect as if it had not been sealed.
- The sealing of an arrest under section 851.91 does not relieve the petitioner of the obligation to disclose the arrest, if otherwise required by law, in response to any direct question contained in a questionnaire or application for public office, for employment as a peace officer, for licensure by any state or local agency, or for contracting with the California State Lottery Commission.
- The sealing of an arrest under this section does not affect petitioner's authorization to own, possess, or have in his or her custody or control any firearm, or his or her susceptibility to conviction under Chapter 2 (commencing with section 29800) of Division 9 of Title 4 of Part 6, if the arrest would otherwise affect this authorization or susceptibility.
- The sealing of an arrest under this section does not affect any prohibition from holding public office that would otherwise apply under law as a result of the arrest.

3 ☐ The court **DENIES** the petition (*check one*):

- a. ☐ The petition does not meet the requirements listed in Penal Code section 851.91(b)(1).
b. ☐ Petitioner's arrest does not qualify under Penal Code section 851.91(a).
c. ☐ The court finds that sealing the arrest would not serve the interests of justice under Penal Code section 851.91(c)(2).
d. ☐ Other: _____

Date: _____

Signature of judicial officer

This is a Court Order.